BRENDAN NGEHSI NEWANFORBI
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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF MOTION FOR PEREMPTORY WRIT** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492 Action filed May 29, 2026 Trial: Not set

Superior Court of California, Alameda County -- Case No. 26CV191136 -- Judge Jenna M. Whitman, Department 25.

TO DECLARANT: Every factual statement must be checked against personal memory, emails sent/received and the actual supplied documents. The draft is not signed, authenticated evidence, or sworn testimony until personally verified and executed. Remove any statement outside your actual knowledge.

I, Brendan Ngehsi Newanforbi, declare:

1. I am the petitioner in this action, identified in the caption as Brendan Ngehsi Newanforbi. The following statements are based on my personal observations, records I prepared, sent or received, and documents delivered to me in this lawsuit. I could competently testify to them. I do not claim personal knowledge of what CHP officers privately observed or of what Captain Serrato internally reviewed.

2. On November 1, 2024, I was in a rented Tesla Model Y parked on the shoulder of Interstate 580 eastbound near Isabel Avenue in Livermore. I had stopped because I was tired and fell asleep. The vehicle was not moving when the officers approached. I remember being awakened during their contact and answering questions. I did not consent to being arrested, handcuffed, transported or held in jail.

3. I recall Officer Melano directing me to lower or open the passenger window and the passenger door being opened before I had done so. I answered questions about where I had been and where I was, and participated in certain roadside exercises. I do not offer any expert interpretation of the HGN or time-estimation tests. The original recording, not my recollection, should control exact words and chronology.

4. The officers proposed a walk-and-turn test after earlier, distinct exercises and discussions. My recollection is that I expressed willingness to try it. Officer Melano then raised concern about conducting that test on the uneven freeway shoulder, and it was not administered. I distinguish this from the earlier discussion of the one-leg stand. My transcript (Exhibit F) places that exchange at approximately 01:10:14--01:10:30 (Ex. F, printed p. 9 [App. 069]).

5. I was told that the roadside preliminary alcohol screening (PAS) test was not required. I declined that voluntary test. I was then directed to turn around and was handcuffed, transported and taken into custody. My refusal of the roadside PAS was distinct from any later

discussion of an evidentiary chemical test after arrest; I do not assert that no later chemical-test discussion occurred.

6. I was held in custody and released on November 5, 2024. To my knowledge, no criminal charge arising from the November 1 encounter has been filed against me. [VERIFY THROUGH SIGNING DATE.]

7. I reported my concerns about the officers' conduct to CHP and to the California Commission on Peace Officer Standards and Training (POST). I remain willing to supply truthful information and reasonable assistance concerning the alleged unlawful restraint. To my knowledge I have not refused or failed to provide information or assistance reasonably requested of me in an investigation of that alleged conduct. This paragraph concerns the alleged qualifying activity against me, not what I agreed or declined to do during CHP's investigation of me for suspected DUI.

8. I do not know from personal observation which items Captain Serrato read, which officers he interviewed, what review file he maintained, or what rationale beyond the denial letter he used. I do not assert the contents of any document CHP has withheld.

EXHIBITS. Exhibits A through I are bound in the accompanying Appendix of Exhibits, which begins with an index. "App." numbers are stamped at the bottom right of each appendix page. Each exhibit is reproduced complete, in the order received or filed, without alteration of content except as follows: the only additions are the exhibit slip sheets, a Bates index for Exhibit C, the App. page stamps, and a machine-readable text layer on scanned pages; and, consistent with California Rules of Court, rule 1.201, I have redacted personal identifiers (date of birth, driver license number, alien registration number, booking and PFN numbers, license plate number, and a third party's personal telephone number) and the offense codes and descriptions in criminal-history entries. Redacted areas appear as solid black boxes,

some marked "[REDACTED]." Unredacted copies are available to the Court on request.

9. Exhibit A (App. 001--002) is a true copy of the April 20, 2026 letter from Captain G. Serrato, Commander, CHP Dublin Area, denying my April 9, 2026 request for Form I-918 Supplement B certification. I recognize it because I received it in response to my request; it is addressed to me at my Stockton address, bears CHP File No. 390.18437.17620.26-050, refers to my request "Dated: April 9, 2026," and is signed over Captain Serrato's name. I received it by [METHOD AND DATE OF RECEIPT--TO BE COMPLETED BY DECLARANT]. I attached the same document as Exhibit 1 to my verified petition; the copy here is reproduced from page 45 of the petition as filed.

10. Exhibit B (App. 003--025) is a working copy of my April 9, 2026 certification submission, reconstructed from my verified petition as filed: the request letter and supporting legal analysis, the Form I-918 Supplement B I prepared for CHP's signature (petition PDF pp. 47--66, including the petition's own exhibit cover sheets), and my April 9, 2026 2:00 p.m. transmittal e-mail to Sergeant Dutra, copied to Captain Serrato, with Lieutenant Paul's April 10, 2026 acknowledgment reply (petition PDF pp. 145--146). I recognize these as the documents I prepared and sent and the reply I received. [BEFORE SIGNING: compare Exhibit B page by page against the as-sent April 9 e-mail and its attachments in my sent mail; state here whether every page matches, and identify any page that differs or any attachment that was sent but is not reproduced.] Until that comparison is complete, Exhibit B is offered as a working copy pending as-sent verification.

11. Exhibit C (App. 026--052) is a true copy of the document set delivered to me on October 23, 2026 by respondents' counsel, the California Department of Justice, in response to my document requests in this action, as production Exhibit 5, Bates-numbered AGO 000029 through AGO 000053 (25 pages). It is reproduced complete and in produced order, preceded by a one-page Bates index I prepared for convenience (App. 027). I recognize it because I

received it as part of that production and the Bates numbers and file name match the production as delivered. I did not author these records and do not vouch for the truth of their contents; I offer them as the agency's own account of the arrest. (Evid. Code, § 1400 et seq.; see also Evid. Code, § 1414.)

12. Exhibit D (App. 053--056) is a true copy of the CHP Incident Detail Report for Incident No. 241101GG0064, Bates-numbered AGO 000022--000024 (3 pages), received in the same October 23, 2026 production as production Exhibit 3. I recognize it for the same reasons stated in paragraph 11, and offer it on the same basis.

13. Exhibit E (App. 057--059) consists of true copies of the CHP 415 daily activity records for October 31, 2024 for Officer S. Meza-Gonzales (ID 023295) and Officer J. Melano (ID 023054), received in the same October 23, 2026 production as production Exhibits 8 and 11. I recognize them for the same reasons stated in paragraph 11, and offer them on the same basis.

14. Exhibit F (App. 060--075) is a true copy of the 15-page timestamped transcript I prepared from the November 1, 2024 CHP audiovisual recording, as filed as Exhibit 5 to my verified petition (petition PDF pp. 68--82). I prepared it by listening to the recording and transcribing what I heard. Speaker attributions and bracketed descriptions are my own and are not statements by the officers or CHP-certified. It is not a substitute for the original recording, which should control. This is the edition I submitted with my April 9, 2026 request. [BEFORE SIGNING: confirm against the as-sent April 9 attachment that this 15-page edition, and not a later edition, is the one sent.] I do not offer the separate 19-page edition as the April version.

15. Exhibit G (App. 076--077) is a true copy of the Penal Code section 851.6 detention certificate issued by CHP Dublin (Dublin CHP-01991), naming me, which I received after my release. I recognize it because it was given to me by CHP, it bears my name and city, and I

attached it as Exhibit 7 to my verified petition; the copy here is reproduced from page 90 of the petition as filed. I rely on it only as a record of how the custody was later classified, not as a judicial finding.

16. Exhibit H (App. 078--080) consists of true copies of correspondence I received concerning my complaints: CHP Dublin Area's March 26, 2026 letter (File No. 390.18437.17620) assigning Sergeant Eric Dutra to investigate, and POST's acknowledgment letter regarding Case No. PUBLIC-26-000371 (March 23, 2026). I recognize them because they were sent to me in response to my complaints and I attached them as Exhibits 11 and 12 to my verified petition; the copies here are reproduced from pages 141 and 143 of the petition as filed. The underlying complaints I submitted are not attached. [LOCATE AND ATTACH OR DESCRIBE THE COMPLAINTS AS SUBMITTED, IF AVAILABLE.]

17. Exhibit I (App. 081--082) is a true copy of the CHP Dublin Area beat assignment sheet dated October 31, 2024, Bates-numbered AGO 000025, received in the same October 23, 2026 production as production Exhibit 4. I recognize it for the same reasons stated in paragraph 11. The black redaction boxes and yellow highlighting appear on the copy as produced; I did not add them.

18. I have not attached the October 23, 2026 production transmittal, CHP's privilege log, my requests for production or their proofs of service, the federal screening order, Respondents' Answer, or this Court's August 29, 2026 order. Court-file documents are the subject of a separate request for judicial notice; the native recordings are addressed by separate lodging; and discovery materials are reserved for any discovery motion. I understand that the court's September 8, 2026 filing confirmation for my lodging papers records the related proof of service as rejected, and I do not represent that any recording has been lodged effectively or received in evidence.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: [DATE--TO BE COMPLETED BY DECLARANT], at [CITY/STATE OF ACTUAL EXECUTION].

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BRENDAN NGEHSI NEWANFORBI

Petitioner, in propria persona

DOCUMENT CONTROL: Not signed, filed, served or sworn. Bracketed validation prompts must be cleared before use. Exhibits A--I are bound in the appended Appendix of Exhibits (App. 001--082); no redactions have yet been applied. Contact and proper legal signature must be reconciled to actual docket identity.